

		Therefore, the court will award monetary sanctions for Plaintiff's failure to appear for her deposition. Plaintiff also seeks sanctions against Defendant's former Counsel Kevin A. Spainhour and Defendant's current Counsel John R. Ramirez. However, "monetary sanctions against the party's attorney require a finding [that] the 'attorney advis[ed] that conduct.'" (<i>Ghanooni v. Super Shuttle</i> (1993) 20 Cal.App.4th 256, 261, quoting Code Civ. Proc., § 2023, subd. (b)(1); see Code Civ. Proc., § 2023.030, subd. (a) [monetary sanctions may be imposed against "one engaging in the misuse of the discovery process, or any attorney advising that conduct"], italics added.) In this case, there is insufficient evidence that Defendant's former or current Counsel advised the improper conduct. The court will deny the request for monetary sanctions as to Defendant's Counsels. Plaintiff shall give notice of this ruling.
8	Larimore vs. Metagenics LLC 30-2025-01455322	<u>Motion for Stay</u> The court does not have a written tentative ruling in this case. The parties or their counsel shall be ready to address the following issue: 1. Whether <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736 applies in light of the court's prior ruling that this action is controlled by California Arbitration Act rather than the Federal Arbitration Act. (See ROA #48.) 2. If the Federal Arbitration Act applies in this case, whether only the substantive aspects of the Act apply in the courts of this state. (See (<i>Nixon v. AmeriHome Mortgage Company, LLC</i> (2021) 67 Cal.App.5th 934, 945; <i>Hernandez v. Sohnen Enterprises, Inc.</i> (2024) 102 Cal.App.5th 222, 240.) 3. If the California Arbitration Act applies in this case, whether Civil Procedure Code section 1281.4 mandate a stay in the circumstances of this case.

		4. Whether Civil Procedure Code sections 917.1 to 917.9 mandates a stay of this case pending appeal in the circumstances of this case.
9	Ascencio vs. Akbarzadeh 30-2023-01362017	<u>Motion for Summary Judgment and/or Summary Adjudication</u> The court does not have a written tentative ruling in this case. The parties or their counsel shall be ready to address the following issue: 1. Whether Proposition 22 only addresses labor classifications and labor disputes as they relate to driver benefits, or whether it also affects tort liability for injuries to third parties.